come up during the present administration. Only one European nation—Ukraine—had a TPS designation when the President began his second term, and that country's TPS designation has not yet come up for review. See 90 Fed. Reg. 5936 (2025) (extending Ukraine TPS designation through October 19, 2026). The only other European states ever designated for TPS were the war-torn provinces of Kosovo and Bosnia-Herzegovina.[6] The great majority of countries granted TPS have ranked among the poorest nations of the world, and no European nation falls into that category.

Viewing all the relevant evidence, we conclude that *Miot* respondents are unlikely to prove that race was a motivating factor in the decision to terminate Haiti's TPS designation. It follows that they are not entitled to interim relief on their equal protection claim.[7]

* * *

The judgments of the United States District Courts for the Southern District of New York and the District of Columbia are reversed. The cases are remanded for further proceedings consistent with this opinion.

It is so ordered.

Page Proof Pending Publication

JUSTICE THOMAS, concurring.

I join the opinion of the Court in full. I write separately to address two more fundamental problems with the *Miot* respondents' suit. First, their equal protection claim, while meritless under the Court's precedents, was also beyond the

---

[6] 63 Fed. Reg. 31527 (1998) (designating Kosovo for TPS); 65 Fed. Reg. 33356 (2000) (terminating Kosovo's TPS designation); 57 Fed. Reg. 35604 (1992) (designating Bosnia-Herzegovina for TPS); 65 Fed. Reg. 52789–52790 (2000) (terminating Bosnia-Herzegovina's TPS designation).

[7] On June 16, *Miot* respondents filed a motion to dismiss the writ of certiorari as improvidently granted. They claim that newly discovered evidence provides further support for their equal protection claim. This evidence is cumulative of other evidence in the record, and the motion is denied.

District Court's jurisdiction. Second, even assuming jurisdiction, the equal protection claim fails for the additional reason that aliens have no equal protection rights against the Federal Government.

I

Title 8 U. S. C. § 1254a(b)(5)(A) precludes district courts from reviewing terminations of Temporary Protected Status (TPS) designations. It provides that "[t]here is no judicial review of any determination of" the Secretary of Homeland Security "with respect to the . . . termination" of a designation of a foreign country for purposes of Temporary Protected Status. See *ante*, at 338–339. As the Court explains, this bar precludes the statutory claims challenging the Secretary's "determination" that the TPS designations for Syria and Haiti should be terminated because they challenge "the process that led to [the Secretary's] final decision." *Ante*, at 339. The Court does not decide whether the *Miot* respondents' equal protection claim is barred as well.

Page Proof Pending Publication

In my view, this equal protection claim is barred by the statute. It falls within the plain text of § 1254a(b)(5)(A)'s judicial-review bar. Respondents asked a federal court to "[s]et aside the termination of Haiti's . . . designation as . . . unconstitutional" because it "was, at least in part, improperly motivated by animus and discriminatory intent based on race and ethnicity." Amended Complaint in No. 25–cv–2471 (D DC), ECF Doc. 74, pp. 84–86. By asking for a court order invalidating the Secretary's decision to terminate Haiti's designation, respondents sought precisely what Congress barred: "judicial review of" the Secretary's determination "with respect to the . . . termination . . . of a designation . . . of a foreign state." § 1254a(b)(5)(A). The statutory text does not distinguish statutory and constitutional claims; it bars all "judicial review." Judicial review, of course, means "[a] court's power to review the actions of other branches or levels of government," and it "esp[ecially]" refers to the "power to invalidate legislative and executive actions as

being unconstitutional." Black's Law Dictionary 1011 (12th ed. 2024). Therefore, for the same reasons that their statutory claims are barred, their constitutional claim is also barred: It challenges "the process that led to" the "decision to terminate [Haiti's] TPS designatio[n]" at a minimum, and it likely is barred even under respondents' narrower view that the bar applies "only to substantive claims" respecting a termination. *Ante*, at 340.

Respondents suggest that the plain language of the statute should not apply. Brief for Respondents in No. 25–1084, p. 15. According to this Court's modern precedent, constitutional avoidance requires a clear statement to bar judicial review of constitutional claims. See *Webster* v. *Doe*, 486 U. S. 592, 603 (1988). Barring all judicial consideration of a constitutional challenge to the Secretary's TPS determination could, these precedents say, "rais[e] a serious constitutional question of the validity of the statute as so construed." *Weinberger* v. *Salfi*, 422 U. S. 749, 762 (1975). Accordingly, the argument goes, courts should avoid interpreting the statute to have barred such review unless its intent to do so was clear, which respondents appear to doubt. *Ibid.*

Page Proof Pending Publication

I am unconvinced for two reasons.

A

First, the statute makes Congress's intent to preclude judicial review clear. The canon of constitutional avoidance applies only if the statute is ambiguous. *Coney Island Auto Parts Unlimited, Inc.* v. *Burton Tr. for Vista-Pro Automotive, LLC*, 607 U. S. 155, 161 (2026). Congress's language—"no judicial review"—is not ambiguous. See *ante*, at 338–340. There is no indication in the text that reviewability may turn on the source of law for the underlying claim. It follows that constitutional avoidance has no role.

B

Second, even if § 1254a(b)(5)(A) were ambiguous, a judicial-review bar would raise no "serious constitutional question"

in the first place. *Weinberger*, 422 U. S., at 762. Because inferior federal courts are creatures of statute, U. S. Const., Art. I, § 8, cl. 9, they "possess no jurisdiction but what is given them by the power that creates them," *United States* v. *Hudson*, 7 Cranch 32, 33 (1812); accord, *Trainmen* v. *Toledo, P. & W. R. Co.*, 321 U. S. 50, 63–64 (1944) (explaining that Congress has "plenary control over the jurisdiction of the federal courts"). So, Congress has the authority to deprive district courts of jurisdiction to decide particular kinds of claims.

It makes no difference that the *Miot* respondents alleged a violation of the Constitution. As Justice Scalia put it, "What could possibly be the basis for" doubting Congress's authority to bar judicial review of constitutional claims? *Webster*, 486 U. S., at 612 (dissenting opinion). "The very text of the Constitution refutes th[e] principle" that "*all* constitutional violations must be remediable in the courts." *Ibid.* In some cases, a question of constitutional law is "textually committed" to adjudication solely by another branch. *Nixon* v. *United States*, 506 U. S. 224, 228 (1993); see, *e. g.*, Art. I, § 2, cl. 2 (setting the qualifications for House Members); § 3, cl. 3 (setting qualifications for Senators); § 5, cl. 1 (establishing that "[e]ach House shall be the Judge of the . . . Qualifications of its own Members," not any court). In other contexts, the "lack of judicially discoverable and manageable standards" has been taken to show that a claim of a constitutional violation cannot be addressed on the merits by federal courts. *Nixon*, 506 U. S., at 228.

Page Proof Pending Publication

Other familiar principles likewise bar judicial review of constitutional claims. An obvious one is sovereign immunity, "a monument to the principle that some constitutional claims can go unheard." *Webster*, 486 U. S., at 613 (Scalia, J., dissenting). Because of sovereign immunity, no one can sue the Federal Government for damages without a waiver, even if he brings a constitutional claim and even if damages are his only possible remedy. Likewise, "courts cannot examine" "the President's actions on subjects within his 'con-

clusive and preclusive' constitutional authority," regardless of whether he violates the Constitution in exercising that authority. *Trump* v. *United States*, 603 U. S. 593, 609 (2024). The Constitution thus does not require that courts be able to hear all constitutional claims.

* * *

Congress barred all judicial review of TPS termination decisions, including constitutional claims. Since nothing in the Constitution prohibits Congress from doing so, courts are obliged to simply "giv[e] effect to [§ 1254a's] ordinary meaning." *Guerrero-Lasprilla* v. *Barr*, 589 U. S. 221, 244 (2020) (THOMAS, J., dissenting).[1]

II

Respondents' equal protection claim also has no basis in the Constitution. The Constitution has only one Equal Protection Clause, and it applies only to the "State[s]," not the Federal Government. Amdt. 14, § 1. Respondents, of course, sued the Federal Government. When asked at argument how the Equal Protection Clause could have anything to do with a suit against the Federal Government, respondents' counsel, drawing on precedents of this Court, stated that the claim "arises under . . . the Fifth Amendment's equal protection guarantee" because "the Fifth Amendment constrains the federal government in the same way that the Fourteenth Amendment constrains states." Tr. of Oral Arg. 118. Because the Fifth Amendment has no Equal Protection Clause, this Court was wrong to read equal protection into it in *Bolling* v. *Sharpe*, 347 U. S. 497 (1954). And, even if the Due Process Clause does prohibit some discrimination, it would not do so in a case about immigration status.

Page Proof Pending Publication

---

[1] Although I would rule against respondents based on the judicial-review bar, I also agree with the Court that they are unlikely to succeed on the merits. Cf. *Jennings* v. *Rodriguez*, 583 U. S. 281, 314 (2018) (THOMAS, J., concurring in part and concurring in judgment).

A

There is little evidence for the Court's modern assumption that "the Due Process Clause of the Fifth Amendment contains an equal protection component whose substance is 'precisely the same' as the Equal Protection Clause of the Fourteenth Amendment." *United States* v. *Vaello Madero*, 596 U. S. 159, 166–167 (2022) (THOMAS, J., concurring) (quoting *Weinberger* v. *Wiesenfeld*, 420 U. S. 636, 638, n. 2 (1975)). The Clause says nothing about equal protection or discrimination. Reading an implicit "equal protection component" into the Fifth Amendment's language renders incomprehensible the Fourteenth Amendment's inclusion of both an identical Due Process Clause and the Equal Protection Clause. *Vaello Madero*, 596 U. S., at 170–171 (opinion of THOMAS, J.). History provides no basis for this atextual reading, either.[2] See *id.*, at 167–171.

Even if the Due Process Clause did include some nondiscrimination principle, it would have no application here. The Due Process Clause restricts the Federal Government's ability to "depriv[e]" people of "life, liberty, or property." U. S. Const., Amdt. 5. "The Due Process Clause protects rights, not privileges." *Learning Resources, Inc.* v. *Trump*, 607 U. S. 229, 323 (2026) (THOMAS, J., dissenting) (internal quotation marks omitted). "The founding generation understood the phrase 'life, liberty, or property' to refer to a relatively narrow set of core private rights that did not depend on the will of the government." *Sessions* v. *Dimaya*, 584 U. S. 148, 213 (2018) (THOMAS, J., dissenting).

The termination of Haiti's TPS designation does not deprive respondents of "life, liberty, or property," so they have no claim even if the words "due process" implicitly forbid

Page Proof Pending Publication

[2] As I have explained, there is "substantial support for the proposition that . . . the Citizenship Clause guarantees citizens equal treatment by the Federal Government with respect to civil rights." *Vaello Madero*, 596 U. S., at 179 (THOMAS, J., concurring). But, respondents are not citizens, so the Citizenship Clause cannot guarantee them any rights.

discriminatory animus. The discretionary and limited status that a TPS designation provides, like any immigration status for aliens, is a government-created privilege, not a core private right. See *United States ex rel. Knauff* v. *Shaughnessy*, 338 U. S. 537, 542 (1950) ("Admission of aliens to the United States is a privilege granted by the sovereign United States Government"); *Harisiades* v. *Shaughnessy*, 342 U. S. 580, 586–587 (1952) (explaining that even permanent residence is not a "right" but "a matter of permission and tolerance"); *United States ex rel. Turner* v. *Williams*, 194 U. S. 279, 290 (1904) ("[T]he deportation of an alien who is found to be here in violation of law is not a deprivation of liberty without due process of law"). So, a TPS determination does not implicate the Due Process Clause even if a discriminatory motive is inconsistent with "due process" in other contexts.

B

Page Proof Pending Publication

Perhaps for these reasons, this Court has never subjected even express racial classifications in immigration laws to scrutiny under the Due Process Clause. While foreigners have long been able to claim constitutional protection from racial discrimination by States, see *Yick Wo* v. *Hopkins*, 118 U. S. 356, 368–369 (1886), they have never been guaranteed a right to immigration status or citizenship based on equal protection principles, even when these laws were openly discriminatory, see Act of May 6, 1882, ch. 126, 22 Stat. 58–59 (severely restricting Chinese immigration); *Takao Ozawa* v. *United States*, 260 U. S. 178, 192–193 (1922) ("In all of the Naturalization Acts from 1790 to 1906 the privilege of naturalization was confined to white persons (with the addition in 1870 of those of African nativity and descent)," and legislation up to 1922 had not changed that restriction). Congress only amended these laws to eliminate such discrimination in the middle of the 20th century,[3] but not because the mean-

[3] The racial restrictions for naturalization were gradually removed from 1940 onward. See *Oyama* v. *California*, 332 U. S. 633, 635, n. 3 (1948). The last restrictions, however, were not removed until 1952. See *ibid.*

ing of the Fifth Amendment has changed. See 8 U. S. C. § 1427(a) (present naturalization statute).

If equal protection principles applied to immigration decisions, much of even our current immigration law would conflict with this Court's modern equal protection doctrine. This Court has interpreted the Equal Protection Clause to bar discrimination based on "country of origin." *Oyama* v. *California*, 332 U. S. 633, 640 (1948). But, our immigration laws have distinguished among aliens based on their national origin from the beginning. See, *e. g.*, Act of July 6, 1798, § 1, 1 Stat. 577 (authorizing deportation of those who are subjects of hostile nations). Today, applicants for immigration are treated differently based on their nationality as a matter of course. 8 U. S. C. § 1152(a)(2). And, respondents themselves seek a protection from deportation for people from Haiti, but not the neighboring Dominican Republic. If they are correct that the Court should apply equal protection precedents to immigration decisions, then the program that they benefit from may, ironically, be unconstitutional.

Page Proof Pending Publication

JUSTICE KAGAN, with whom JUSTICE SOTOMAYOR and JUSTICE JACKSON join, dissenting.

For over a decade, the Government has provided humanitarian relief to Haitian and Syrian nationals in the United States through the Temporary Protected Status (TPS) program. The Secretary of Homeland Security first designated Haiti for the program in 2010 after an earthquake devastated the country; the Secretary designated Syria in 2012 because of the government and military's brutal repression of the country's civilian population. Since those initial designations, Secretaries have repeatedly examined the conditions in the two countries, and have repeatedly determined that they remain too dangerous to permit safe return. As a result, those countries' TPS designations have been extended

---

(explaining that persons of Japanese descent were still ineligible in 1948); Immigration and Nationality Act of 1952, § 311, 66 Stat. 239.